

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-09

TZ SSE Buyer, LLC, Complainant v. COSCO Shipping Lines Co., LTD, Respondent

JOINT MOTION TO EXTEND BRIEFING DEADLINES

Pursuant to Rules 69 and 71 of the Federal Maritime Commission's Rules of Practice, and Procedure, and 46 CFR § 502.214, Complainant TZ SSE Buyer, LLC ("Complainant") and Respondent COSCO Shipping Lines Co., LTD ("Respondent") (together, the "Parties") jointly move to extend the briefing deadlines set forth in the Presiding Officer's March 19, 2025 Second Amended Scheduling Order. In support of this motion, the Parties state as follows:

1. The current briefing deadlines, as set forth in the Presiding Officer's March 19, 2025 Second Amended Scheduling Order, are as follows:
 - a. **May 30, 2025:** Complainant's Opening Brief, Proposed Findings of Fact, and Appendix.
 - b. **June 30, 2025:** Respondent's Response Brief, Proposed Findings of Fact, Response to Complainant's Proposed Findings of Fact, and Appendix.
 - c. **July 14, 2025:** Complainant's Reply Brief and Response to Proposed Findings of Fact.
2. On May 15, 2025, the Presiding Officer entered an order granting in part Complainant's Motion to Compel, which required Respondent to supplement its responses to certain of Complainant's Requests for Production of Documents and Supplemental Interrogatories by May 23, 2025.

3. Respondent has already made several supplemental productions of documents and, in compliance with the Presiding Officer's order, provided supplemental responses to Complainant's requests for production and supplemental interrogatories on May 23, 2025.

4. Complainant will require additional time to review the new documents and responses recently provided by Respondent.

5. Furthermore, Respondent's Motion for Partial Summary Judgment filed on March 11, 2025, which has been fully briefed, remains undecided.

6. The Presiding Officer's ruling on the pending Motion for Partial Summary Judgment is likely to affect how the proceeding continues from there. As the Presiding Officer has recognized, Respondent takes the position that it is not required to produce documents related to shipments arriving at Canadian ports (the "Canadian Shipments"), which Complainant disputes.

7. Accordingly, the Parties propose the following revised briefing schedule:

- a. **June 18, 2025:** Complainant's Opening Brief, Proposed Findings of Fact, and Appendix.
- b. **August 4, 2025:** Respondent's Response Brief, Proposed Findings of Fact, Response to Complainant's Proposed Findings of Fact, and Appendix.
- c. **August 18, 2025:** Complainant's Reply Brief and Response to Proposed Findings of Fact.

8. Pursuant to 46 CFR § 502.71, the Parties conferred and believe that the requested extension will facilitate the resolution of the outstanding discovery issues and ensure that both Parties have adequate time to complete necessary discovery and briefing.

WHEREFORE, the Parties respectfully request that the Presiding Officer grant this Joint Motion to Extend Briefing Deadlines and that the following revised schedule be adopted:

- i. Complainants' Brief, Proposed Findings of Fact, and Appendix – **June 18, 2025**;
- ii. Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix – **August 4, 2025**; and
- iii. Complainants' Reply Brief and Responses to Proposed Findings of Fact – **August 18, 2025**.

STATEMENT OF RESPONDENT¹

Although Respondent is agreeable to the proposed schedule, it wishes to emphasize that, regardless of whether the Presiding Officer grants Complainant's request for additional time in whole or in part, Respondent needs an additional interval between the time Complainant files its Opening Brief and the date for Respondent to submit its Response. Good cause exists for this extension of the interval, as follows:

- a. JFLS is a small firm (four lawyers) with a large caseload (we are currently Counsel of Record in eight (8) other proceedings before the FMC). Obligations in this case are likely to conflict with obligations in those other cases.
- b. The schedule as proposed for Respondent's Response would include both a major holiday and pre-planned vacations/absences from the office.
- c. The partner of one of our lawyers is currently undergoing substantial, time-consuming medical treatment, which will significantly limit their ability to participate in the preparation of the Response.

We note that the existing schedule already gives Complainant a substantial advantage. Its counsel has undoubtedly been working on their Opening Brief for at least a month or two, so far. Respondent obviously must await Complainant's Opening Brief before it starts anything more than preliminary planning for the Response. Further, as shown in the Schedule, Complainant only has three documents to submit, while Respondent has four.

¹ Complainant disagrees with Respondent's characterization that it holds a "substantial advantage." Depositions concluded only recently, and Respondent has just produced additional documents in response to outstanding discovery obligations. Moreover, Respondent has yet to produce any documents concerning the Canadian Shipments. As a result, Complainant has not had the benefit of a complete record from which to prepare its Opening Brief. The Parties' mutual goal remains ensuring a fair and workable schedule for both sides.

In short, it is not practically feasible for Respondent's Counsel to adequately represent its client's interest absent a reasonable amount of additional time and so it may need to consider alternatives.

Dated: May 27, 2025

Respectfully jointly submitted,

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